



CHAPTER xxvi.

An Act to confer further powers on the Tees Conservancy Commissioners with respect to rates and dues. A.D. 1919.
[22nd July 1919.]

WHEREAS by the Tees Conservancy Acts 1852 to 1912 the Tees Conservancy Commissioners (hereinafter referred to as "the Commissioners") are constituted and incorporated and invested with powers for the conservancy improvement and regulation of the River Tees and for the construction of works and the reclamation of land and for other purposes :

And whereas it was found necessary for the successful prosecution of the war that the undertaking of the Commissioners should be carried on in an efficient manner but that owing to circumstances arising out of the war the undertaking could not be so carried on unless the rates dues and tolls levied by the Commissioners were increased and accordingly the Board of Trade in exercise of the powers conferred on them by Regulation 39 B.B. of the Defence of the Realm (Consolidated) Regulations 1914 by Statutory Rules and Orders 1918 No. 240 made by them on the twenty-sixth day of February one thousand nine hundred and eighteen authorised the Commissioners to levy increased rates dues and tolls not exceeding in any case by more than fifty per centum the corresponding rates dues and tolls which the Commissioners are authorised by statute to charge :

And whereas it is anticipated that the said increased rates dues and tolls and the right to levy the same will shortly cease to remain in operation :

And whereas it is necessary in the national interest that the undertaking of the Commissioners should continue to be carried on in an efficient manner but upon the cesser of the

A.D. 1919. powers conferred upon the Commissioners by the said Order the resources of the Commissioners will be inadequate to meet the expenditure requisite for that purpose:

And whereas it is therefore expedient to confer on the Commissioners further powers for raising revenue:

And whereas the objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short and collective titles.

1. This Act may for all purposes be cited as the Tees Conservancy Act 1919 and the Tees Conservancy Acts 1852 to 1912 and this Act may together be cited for all purposes as the Tees Conservancy Acts 1852 to 1919.

Interpretation.

2. Terms and expressions to which meanings are assigned by the Tees Conservancy Acts 1852 to 1912 or some or one of them have in this Act (unless the context otherwise requires) the same respective meanings.

Increase of rates dues tolls and charges.

3. From and after the cesser of the powers conferred by the said Order it shall be lawful for the Commissioners to demand levy or impose and take increased rates dues tolls and charges not exceeding in any case by more than thirty-three and one-third per centum the corresponding rates dues tolls and charges which they are by the Tees Conservancy Acts 1852 to 1912 or some or one of them authorised to demand levy or impose and take and to exercise in respect of any increased rate due toll or charge which they may demand levy or impose under the authority of this Act all or any of the powers of collecting recovering and receiving the corresponding rate due toll or charge which are or is vested in or exerciseable by them under or by virtue of the provisions of the said Acts or some or one of them or otherwise howsoever.

Provision in case of future purchase.

4. If the undertaking of the Commissioners is acquired otherwise than by agreement by any public body or trustees the Commissioners shall not be entitled to make any claim in respect of the powers conferred upon them by this Act Provided that nothing in this section shall prejudice the rights of any person entitled to any mortgage of or charge secured upon

the undertaking or revenue of the Commissioners or any part thereof. A.D. 1919.

5. The costs charges and expenses preliminary to and of Costs of Act
and incidental to the preparing of and applying for and the
obtaining of this Act shall be paid by the Commissioners.

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